

23STCV13319 23STCV13319

County: los-angeles

Division: Civil Law and Motion

Department: 509

Hearing date: 2026-07-01

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C509%2C07%2F01%2F2026

Source SHA-256: ae149983fe2fb60dd4ffcde53b3a25e31fe20fa7336b6427c82148b13cadab33

Case Number: 23STCV13319 Hearing Date: July 1, 2026 Dept: 509

Andrew Kim, et al. v. David Kim, et al.

MOTION TO QUASH

MOVING PARTY: Defendant Duk Kyung Kim

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a habitability action. Plaintiffs Andrew Kim; John Kim; Jin Kim and Hyang Kim (Plaintiffs) bring this action against defendants David Kim; Duk Kyung Kim; and Hyoung Kyu Kim. Plaintiffs allege various issues regarding habitability of a residential apartment unit.

Defendant Duk Kyung Kim (Defendant) now moves to quash the deposition subpoenas for production of business records issued by Plaintiffs to the California Department of Motor Vehicles (DMV) for Defendant's DMV records. No opposition was filed.

TENTATIVE RULING:

Defendant's Motion to Quash is GRANTED.

Defendant's Motion for Sanctions is DENIED.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Motion to Quash

A. Legal Standard

A court may quash a subpoena entirely or partially, and issue an order to protect parties, witnesses or consumers from unreasonable or oppressive demands including violations of privacy. (Code Civ. Proc., § 1987.1.) A motion to quash the production of documents or tangible things requires a separate statement. (Cal. Rules of Court, rule 3.13459(a)(5).) “[U]pon motion reasonably made by the party, judges may rule upon motions for quashing, modifying or compelling compliance with, subpoenas.” (Lee v. Swansboro Country Property Owners Ass’n (2007) 151 Cal.App.4th 575, 582-583.)

B. Analysis

Defendant moves to quash the deposition subpoena served on the DMV (the Subpoena).

The Subpoena states:

Please produce any and all records in your possession, custody or control that concern, refer to, or were prepared in connection with: (a) any change of address to 109 S. Berendo Street, Los Angeles CA 90004 and 9838 Richeon Ave., Downey CA 90240 submitted by Duk Kyung Kim from 2019 to 2023; (b) any and all documents constituting or regarding accident reports submitted by Duk Kyung Kim from 2019 to 2025; and (c) any documentation relating to the failure to maintain insurance.

(Masserman Decl., Exhibit B.)

Defendant’s position is the Subpoena “is irrelevant, overbroad, and invasive of Defendant’s statutory and constitutional privacy rights.” (Mot. at p. 3:23-24.)

“The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.] The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (Williams v. Superior Ct. (2017) 3 Cal.5th 531, 552.)

Defendant argues disclosure of DMV records violates his right to privacy. Defendant cites Vehicle Code, section 1808.21 which states: “[a]ny residence address in any record of the department is confidential and shall not be disclosed to any person, except a court, law enforcement agency, or other government agency, or as authorized in Section 1808.22 or 1808.23.” However, “confidentiality does not equate with privilege.” (Department of Motor Vehicles v. Superior Court (2002) 100 Cal. App. 4th 363, 371.) “This is not to say that a statute that ‘provides for confidentiality’ does not express a strong public policy of nondisclosure, but is to say that the policy does not rise to the level of an absolute prohibition, thereby precluding a case-by-case judicial determination that weighs the public policy against disclosure of specified information against a particular party’s interest in obtaining that information.” (Id. at p. 375.) The court must carefully balance the right of privacy against the need of discovery. (Britt v. Superior Court (1978) 20 Cal.3d 844, 855-856.) Sensitive personal information can be ordered disclosed if the information is directly relevant and essential to a fair determination of the action. (Alch v. Superior Court (2008) 165 Cal.App.4th 1412, 1431-1432.)

Because Defendant’s constitutional privacy rights are implicated, the burden is on Plaintiffs to demonstrate that the information sought are both (1) directly relevant to claims or defenses in this action (Britt v. Superior Court (1978) 20 Cal.3d 844, 859), and (2) not available through a less intrusive means of discovery (Allen v. Superior Court (1984) 151 Cal.App.3d 447, 453). However, by failing to oppose, Plaintiffs have not met their burden. Therefore, when balancing Defendant’s privacy interests against Plaintiffs interest in discovery, this Court finds Plaintiffs have not sufficiently demonstrated a need for disclosure.

Accordingly, Defendant's Motion to Quash is GRANTED.

C. Sanctions

In making an order pursuant to California Code of Civil Procedure, section 1987.1, "the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Defendant "requests an award of monetary sanctions against Plaintiffs and their counsel, jointly and severally, in the amount of \$1590.00." (Not. of Mot. at p. 2:17-18.) "[I]n connection with the preparation, filing, and anticipated argument of this Motion, our office has spent 1 hour reviewing the Subpoena, conducting legal research, and drafting the meet and-confer correspondence; 3.5 hours preparing this Motion and supporting papers; and we anticipate an additional 1.5 hours will be spent in review of any opposition, preparation of a reply, and appearance at the hearing. Our office billing rate for such work is \$265.00 per hour." (Masserman Decl. ¶7.)

However, Plaintiff did not oppose this motion. Therefore, the Court must find "that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).) The Court, in its discretion, finds the Subpoena was not oppressive and therefore, declines to award expenses.

IT IS SO ORDERED.

Dated: July 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.